FIRSTRAND

ELECTRONIC FUNDS TRANSFER (EFT)
Terms of Use

Disclaimer: These Terms of Use form part of the agreement which governs the use of the Electronic Funds Transfer (EFT) payment stream and further regulates the relationship between FirstRand Limited (hereafter known as FRB) and the payment originator (hereafter known as the User).

Section 1: Qualifying Criteria

1.1. In order for a prospective User to be sponsored into the EFT Payment System by FRB, FRB must be satisfied regarding the following:

1.1.1. The User must not introduce any risk into the Payments System. This risk includes but is not limited to reputational risk and financial risk.

1.1.2. The User must have had their business processes relating to the processing of EFT payment instructions assessed by FRB.

1.1.3. The User must have understood and accepted the FRB EFT Terms of Use. If the FRB EFT Terms of Use have not been understood in whole or part, the User is under an obligation to approach the FRB representative to gain clarity.

1.1.4. The User must submit payment instructions as per the technical specifications provided to them by FRB.

1.1.5. The User must produce a sample of their debit order authority (hereafter referred to as the mandate) for vetting to ensure compliance with the minimum requirements as set out in these EFT Terms of Use.

1.1.6. The User must agree to produce an Auditor's Certificate upon request.

1.1.7. If a prospective User wishes to operate as a Third Party Payment Provider (TPPP) and/or System Operator (SO), the User must:

1.1.7.1 Be registered as a TPPP and/or SO with the Payments Association of South Africa (PASA).If the User is not registered as a TPPP with PASA, FRB will assist with the application prior to being allowed to submit payment instructions. SO applications must be made with PASA directly.

1.1.7.2 Bind its User to the FRB EFT Terms of Use.

Section 2: Payment Instructions Eligible for Processing

2.1 In order for an EFT payment instruction to be eligible for processing, the User must ensure that:

2.1.1 A valid mandate is obtained prior to the submission of the payment instruction;

2.1.2 The payment instruction has reached its action date as stipulated by the mandate;

2.1.3 The payment instruction is identifiable by a unique abbreviated name, agreement number and payment cycle to enable any debit orders not yet submitted to be stopped.

Section 3: Mandates

3.1 The format provided in Appendix B is the minimum that is required to be complied with. The User may add to the mandate but may not delete any clauses.
3.2 A valid mandate must be agreed upon by the User and the accountholder prior to any payment instructions being submitted for processing.
3.3 The mandate may be in the form of written, electronic or voice recorded.
3.4 Although the minimum requirements as per Appendix B must be adhered to, the following crucial criteria included in Appendix B are deemed crucial criteria in terms of the PASA UDOA Process as documented in Section 9:
3.4.1 Abbreviated Short Name of the originator,
3.4.2 User Name,
3.4.3 Deduction date,
3.4.4 Deduction amount,
3.4.5 Surname, Initial and Bank Account Number of accountholder;

3.5. The mandate must indicate the amount payable or clearly state that the amount payable will vary. The latter can only occur in instances where it is dependent on the type of service provided e.g. cellular phone contracts, etc;
3.6 The User must obtain specific acceptance by the accountholder of understanding and obligations in the instances of voice recorded and electronic mandates.
3.7 The User carries the responsibility of verifying that the account details provided by the accountholder on the mandate are valid and that the accountholder has relevant signing authority on the account.
3.8 In the instance of signed written mandates, the signed (authorized) mandate copies must be provided to the accountholder prior to any payment instructions being submitted in terms of that particular mandate.
3.9 In the instance of voice recorded and electronic mandates, written confirmation of the mandate must be provided to the accountholder prior to any payment instructions being submitted in terms of that particular mandate and within 30 calendar days of the mandate being entered into.
3.10 The mandate and all related documents must as a minimum, conform to the format as set out in Appendices B to E which may only be changed subject to the approval of FRB.
3.11 The format of the mandate must be approved by FRB prior to being utilized by the User.
3.12 If a User wishes to utilize a differing type of mandate from what is currently being used, the format must be approved by FRB prior to being utilized.
3.13 Users must retain all mandates and relating documentation for a minimum period of five years after the payments have ceased or after the last payment instruction having been submitted, whichever applicable.
3.14 Users must be able to produce mandates upon request from FRB.
3.15 The User must not cede or assign any of its rights regarding the mandate unless:
3.15.1 The agreement is also ceded or assigned to the third party;
3.15.2 Written consent has been given by the accountholder;
3.15.3 The accountholder is notified prior to the next payment instruction being submitted;
3.15.4 That written consent and notification conforms to the format provided;

Section 4: Abbreviated Name

4.1 Abbreviated Names must reflect the User's trading name and must be approved by FRB prior to being included in any payment instructions.
4.2 The abbreviated name and agreement number must remain the same for the duration of the contract between the User and the accountholder and must reflect on the accountholder's bank statement as specified on the mandate.
4.3 The User's abbreviated name and/or agreement reference may be changed, with the approval of FRB, in the event of an assignment/cession. Users must provide the accountholder 30 calendar days notice prior to the change.
4.4 The notice must reflect the User's new abbreviated name/agreement number as well as the old abbreviated name/agreement number and must be kept as an addendum to the mandate.
4.5 Abbreviated names and/or User Codes may not be changed to circumvent the Stop Payment system.

Section 5: Payment Instructions Not Eligible for Processing

5.1 In order for an EFT payment instruction to be eligible for processing, the User must ensure that:
5.1.1.1 A valid mandate is obtained prior to the submission of the payment instruction;
5.1.1.2 The payment instruction has reached its action date as stipulated by the mandate;
5.1.1.3 The payment instruction is identifiable by a unique abbreviated name and agreement number to enable any debit orders not yet submitted to be stopped.
5.1.1.4 Payment instructions are not presented if there has been a stop payment placed against future debit payment instructions and/or the mandate and related agreement has been cancelled.
5.1.1.5 No part of the mandate is unilaterally changed without consent being obtained from the accountholder and notice given to the accountholder where necessary.
5.1.1.6 The User does not present payment instructions in contravention of the actions relating to the Unpaid and Dispute Reason Codes as outlined in Appendix A.

Section 6: Disputes

6.1 The accountholder has a right to declare a dispute against the authority in terms of which the payment instruction had been processed.
6.2 The authority will only be considered in dispute in the following instances:
6.2.1 The accountholder did not authorize the payment instruction/s; or
6.2.2 The payment instruction/s is in contravention to the authorized mandate; or
6.2.3 The User had been instructed by the accountholder to cancel the mandate; or
6.2.4 The accountholder had stopped the payment of the instruction at their Bank or at the User.
6.3 The Bank will immediately reverse the disputed payment instruction/s in instances where a dispute declaration is submitted within 40 calendar days from action date of the payment instruction being processed.
6.4 In instances where the disputed payment instruction/s falls outside of the 40 calendar day window period, the following must occur:
6.4.1 The User must provide a valid written mandate for the disputed payment instruction within 21 calendar days of receiving the request for same from FRB;

6.4.2 In instances where the requested mandate cannot be provided, the User's nominated account will be debited with the value of the disputed payment instruction/s;

6.4.3 Voice recorded and electronic mandates, while valid mandates, will not be considered in the event of a dispute and the User's nominated account will be debited by FRB with the value of the disputed payment instruction/s.

Section 7: Returned Payment Instructions, Recalls and Reversals

7.1 Payment instructions will be returned to the User, due to either being unpaid or disputed, with a reason code attached outlining the reason for the return.

7.2 These reason codes, as outlined in Appendix A, each have an action attached to them which the User must comply with.

7.3 Users may not resubmit Debit payment instructions where the accountholder has placed a stop payment on their account. In these instances, a new mandate must be obtained before submitting any future payment instructions.

7.4 Users may not resubmit a Debit payment instruction if it has been returned with the code 02 for a period of two consecutive payment cycles.

7.5 The User is obligated to adhere to the thresholds of 10% for Unpaid Ratio and 0.5% for Dispute Ratio of total monthly payment instructions processed per abbreviated name.

7.6 All requests for the recall or reversal of payment instructions must be formally made to FRB.

7.7 The User must indemnify FRB as specified for all recall or reversal requests.

7.8 The User may not submit recall or reversal requests in order to recover part of the payment instruction value.

7.9 The User may not generate debit payment instructions in order to rectify incorrectly processed credit payment instructions.

Section 8: General

8.1 FRB will not become involved in dispute resolution between the User and the accountholder other than the dispute process outlined in Section 6.

8.2 The User may not switch between the EFT payment stream and any other payment stream in order to circumvent any obligations placed on Users utilizing the EFT payment stream.

8.3 The EFT item limits are set as follows:

8.4 Debit payment instructions R 1 000 000 (One Million Rand).

8.5 Credit payment instructions R 5 000 000 (Five Million Rand).

8.6 The User may not circumvent the specified item limit by splitting payment instructions.

8.7 The User may not sort at source.

8.8 The User must ensure that the latest CIM 900 is implemented into their business systems.

8.9 Non compliance with these Terms of Use may result in penalties being levied against the User and termination of sponsorship agreement with FRB.

Section 9: User Debit Order Abuse

9.1 INTRODUCTION

User Debit Order Abuse (UDOA) refers to a specific set of requirements introduced by PASA to manage EFT Debit Order Abuse in conjunction with Sponsoring Banks. These govern the investigation and reporting process of Users and the consequences of processing Debit Orders without Mandates or Deficient mandates, including the imposition of penalties and the addition of Users who have perpetrated User Debit Order Abuse, to the UDOA list.

9.2 TRIGGERS OF UDOA

UDOA processes as set out in clause 9.3 below may be initiated in the event of:

9.2.1 A breach of Dispute Ratios provided for in the EFT Terms of Use; or
9.2.2 An accountholder complaint of UDOA; or
9.2.3 An instruction by PASA Council or the South African Reserve Bank or Financial Services Board or National Treasury, or any other regulatory body, to PASA and/or its Members to investigate UDOA.

9.3 UDOA PROCESSES

9.3.1 Breach of Dispute Ratios provided for in the EFT Terms of Use.

9.3.1.1 On a monthly basis a selection of Users who's dispute ratios have exceeded the ratios as stipulated in section 7 will be selected for investigation.

9.3.1.2 FRB will randomly select a sample of 50 transactions disputed during the month in question and will request the following from the User: That the User:

9.3.1.2.1 Retrieves the mandates for the 50 samples requested .
9.3.1.2.2 Indicates on the list provided by FRB which mandates are present or not present.
9.3.1.2.3 Indicates which of the mandates provided are written, electronic or voice recorded.
9.3.1.2.4 Submits the list, together with the mandates where applicable, to FRB within 21 calendar days from the date of the request.

9.3.2 An accountholder complaint of UDOA

9.3.2.1 Accountholder complaints received by PASA and any other regulatory body will be referred to FRB for investigation.

9.3.2.2 Upon receipt of the complaint FRB will instruct the User concerned to provide within 14 calendar days a copy of the mandate related to the complaints, whether written, electronic or voice recorded, or confirmation that no mandate is in place.

9.3.2.3 If the response from the User indicates that no mandate exists FRB will randomly select

A sample of 50 transactions disputed during the month in question and will request that the User:

9.3.2.3.1 Retrieves the mandates for the 50 samples requested.

9.3.2.3.2 Indicates on the list provided by FRB which mandates are present or not present.

9.3.2.3.3 Indicates which of the mandates provided are written, electronic or voice recorded.

9.3.2.3.4 Submits the list, together with the mandates where applicable, to FRB within 21 calendar days from the date of the request

9.3.3 An instruction by PASA Council or the South African Reserve Bank or Financial Services Board or National Treasury, or any other regulatory body, to PASA and/or its Members to investigate UDOA

9.3.3.1 PASA will, immediately when it receives an instruction regarding UDOA, refer such instruction to FRB, for investigation.

9.3.3.2 Upon receipt of the instruction from PASA, FRB will randomly select a sample of 50 transactions disputed during the month in question and will request that the User:

9.3.3.2.1 Retrieves the mandates for the 50 samples requested.

9.3.3.2.2 Indicates on the list provided by FRB which mandates are present or not present.

9.3.2.2.3 Indicates which of the mandates provided are written, electronic or voice recorded.

9.3.2.4.4 Submits the list, together with the mandates where applicable, to FRB within 21 calendar days from the date of the request

9.4 REVIEW OF INVESTIGATION AND MANDATES

In each of the above UDOA processes the outcome of the investigations will be reviewed in order to determine whether debit order transactions were processed without Mandates or with Deficient Mandates and Conduct an examination of Mandates provided to determine whether a mandate was:

9.4.1.1 Present, or

9.4.1.2 Not present, or

9.4.1.3 Deficient.

9.5 RESULTS AND ACTION

9.5.1 Following the UDOA review referred to in clause 9.4 it will be determined which of the following actions, if any, need to be taken:

9.5.1.1 A penalty imposed in accordance with clause 9.6; or

9.5.1.2 Addition of the User to the UDOA List as contemplated in clause 9.7

9.5.1.3 The **timelines** for the above mentioned UDOA reviews are as follows:

9.5.1.3.1 PASA selects users for investigation

9.5.1.3.2 Month 1- FRB obtains mandates from user & reports to PASA

9.5.1.3.3 Month 2 to Month 5-PASA Vets Mandates and publishes findings report & issues penalty invoice where applicable
9.5.1.3.4 Month 6-FRB Reviews PASA findings Report
9.5.1.3.5 The User has 3 months from Month 6-Month 8 to rectify non-compliance
9.5.1.3.6 Month 9 and onward - The user can be identified for a new investigation

9.6 PENALTIES

9.6.1 A penalty of R1,000.00 (one thousand rand) will be imposed on the Users per incidence of:
9.6.1.1 No Mandate; or
9.6.1.2 A Deficient Mandate.

9.7 USER DEBIT ORDER ABUSE LIST

9.7.1 PASA is the custodian of the UDOA List.
9.7.2 The details as prescribed in clause 9.7.5 below of the User involved in UDOA, along with the name of its Sponsoring Bank and system operator for monitoring purposes, will be added to the UDOA List by PASA , in consultation with the relevant PCH PG, if:
9.7.2.1 More than 10% (ten percent) of a User's sample of 50 (fifty) randomly selected transactions are found to be processed without Mandates in any given report, as contemplated in clause 5; or
9.7.2.2 The User was at any time since 1 March 2015 convicted in a criminal court for the processing of fraudulent debit orders.

9.7.3 No Member Bank may sponsor a User placed on the UDOA List, with the exception of the bank who was the User's Sponsoring Bank at the time the User was placed on the UDOA List.

Once a User has been added to the UDOA List, FRB will conduct monthly investigations as stipulated in 9.3.3 and will submit a report to PASA

9.7.4 An FRB sponsored User may only be removed from the UDOA List if it demonstrates that for a period of 3 (three) consecutive months the User had Mandates for all of the transactions in a randomly selected sample of 50 transactions per month.

9.7.5 Details' for purposes of clause 9.7.2 in respect of each of the following, means:

9.7.5.1 'Çompany': Name, registration number and domicilium citandi et executandi, as well as the name, identity number and physical address of each of its directors;
9.7.5.2 Juristic person other than a company: Name, identification number, if any, and domicilium citandi et executandi, as well as the names and identity numbers of each of its directors, executive officers, members and the physical address of each;
9.7.5.3 Natural person: Name, identity number and physical address.

10. General Definitions

The below listed terms will have the meanings assigned to them and similar expressions will have corresponding meanings. Unless otherwise indicated:

- Any one gender includes the other and are neutral;
- The singular includes the plural and *vice versa*; and
- Natural persons include Legal Entities and *vice versa*.

TERM	DEFINITION
Abbreviated Name	The mandatory field within the User reference field of the standard EFT payment instructions record reflecting the User's trading name.
Accountholder	A person who holds the bank account.
Action Date	The date on which the payment instruction must be processed on the account.
Bank Account	The account held at a bank which can be credited or debited as a result of an EFT payment Instruction.
CIM 900	The consolidated bank table which provides Users with a means to verify specific data prior to the submission of payment instructions.
Credit Payment instruction	An instruction to pay money to the accountholder.
Crucial Criteria	1. Abbreviated Short Name of the originator, 2. User Name, 3. Deduction date, 4. Deduction amount, 5. Surname, Initial and Bank Account Number of accountholder;
Debit Order	Debit Payment instruction or transaction
Debit Payment instruction	An instruction to collect money from the accountholder.
Deficient Mandate	a mandate that does not contain any one or more of the Crucial Criteria;
Disputed Item	The authority of the processed payment instruction has been disputed by the accountholder.
Dispute Ratio	The total monthly disputed payment instructions as a percentage of the total monthly input.
Item	Payment instruction
Item Limit	The maximum monetary value of a payment instruction that may be submitted by a User.
Mandate	an explicit authority given by the accountholder to the User to debit his bank account, which authority must be contained in either written, electronic or voice form, that includes the Crucial Criteria;

No Mandate or without a Mandate	1. no physical written, electronic or voice Mandate; or 2. the absence of any explicit authority given by the accountholder to the User to debit his bank account in a purported mandate; or a falsified mandate, whether or not the intention was to defraud the accountholder;
Nominated Account	An account as specified by the User for the purposes of transacting via the EFT Service.
PASA	Payment Association Of South Africa
Payment Instruction	The instruction to collect funds.
PCH PG	PCH PG-Payment Clearing House Participant Group PCH means an arrangement between two or more system participants governing the Clearing and Settlement of payment instructions between payment system participants. PCH PGs manage operational matters via PCH Agreements, Clearing Rules and Service Level Agreements.
Public Holiday	Non-business days as declared by Government. Such days are not valid action dates.
Recall	The request to withdraw a payment instruction not yet posted to the account of the accountholder.
Reversal	A request to withdraw a payment instruction which has been processed to the account.
System Operator (SO)	Any person who provides payment services to two or more persons in respect of payment instructions
Sorting at Source	Where Users sort each bank's payment instructions and submit those directly to each bank, where the proceeds of such payment instructions are credited to the User's nominated account.
Sponsoring Bank	Means the Participant Bank with which the User has entered into a User agreement.
Stop Payment	An instruction by the accountholder to their bank to stop future payment instructions from being processed on that account.
Third Party Payment Provider (TPPP)	Any person who provides payments to third persons and who processes payment instructions, including the delivery to and/or receipt of payment instructions from a bank and/or a PCH system operator on their own behalf.
Transaction	Means Debit or Credit payment instruction.
Trigger Of UDOA	Those pre-defined triggers listed in clause 9.2
Unpaid Ratio	The total monthly unpaid payment instructions as a percentage of the total monthly input.
User	the originator or the party initiating the debit order payment instruction on behalf of such originator;

Appendix A

UNPAID REASON CODES AND ACTIONS		
Code	**Description**	**Action to be Taken**
02 Not provided for	There are insufficient funds in the bank account.	The User must advise the accountholder that the payment instruction has been returned. The payment instruction may only be resubmitted subject to Sections 5, 7.4 and 7.3. If not, the User cannot resubmit the payment instruction unless a new mandate has been obtained from the accountholder in terms of sections 2.1.1 and 3.
03 No Debit / Credit transactions allowed against this account	No debit or credit payment instructions may be processed against this bank account.	The payment instruction must be removed from processing and the User cannot resubmit payment instructions using the bank account details as outlined in the existing mandate. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
04 Payment stopped	The accountholder has instructed their bank to stop all future debit payment instructions being processed on their bank account from the User in terms of the debit order authority granted to the User.	The payment instruction must be removed from processing. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
06 Account frozen	No transactions may take place on this bank account at all.	The payment instruction must be removed from processing and the User cannot resubmit payment instructions using the bank account details as outlined in the existing mandate. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
08 Account in sequestration	The bank account is not accessible due to sequestration of the Individual that holds it.	The payment instruction must be removed from processing and the User cannot resubmit payment instructions using the bank account details as outlined in the existing mandate. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
10 Account in liquidation	The bank account is not accessible due to liquidation of the Legal Entity that holds it.	The payment instruction must be removed from processing and the User cannot resubmit payment instructions using the bank account details as outlined in the existing mandate. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
12 Account closed	The bank account in question has been closed.	The current payment instruction, as well as all future payment instructions, must be removed from processing The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.

14 Account transferred (Internal)	The bank account to which the payment instruction must be processed has been transferred within the Bank	The User must ensure that the new bank account details are reflected when redirecting the payment instructions to the new account.
16 Account transferred (External)	The bank account to which the payment instruction must be processed has been transferred to another the Bank	The payment instruction must be removed from processing and the User must not resubmit payment instructions using the bank account details as outlined in the existing mandate. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
18 Accountholder deceased	The accountholder is deceased.	The current payment instruction, as well as all future payment instructions, must be removed from processing
22 Account effects not cleared	The accountholder's funds have not been cleared i.e. there may be a cheque awaiting clearance, therefore there are insufficient funds in the bank account to meet the obligation.	The User must advise the accountholder of this and may not resubmit the payment instruction unless the accountholder has confirmed that the funds have been cleared or that the hold on the account has been removed.
26 No such account	The bank account does not exist at the specified Bank.	The current payment instruction, as well as all future payment instructions, must be removed from processing.
56 Not FICA compliant	The bank account does not comply with the requirements as set out by FICA.	The payment instruction must be removed from processing and may only be resubmitted once confirmation is received from the accountholder that they are FICA compliant.
31 Unrecognized initiating party(Credit payment instructions only)	The transaction has been returned because the beneficiary is unable to identify the payer and is unable to allocate the funds due to unrecognizable reference details	The transactions must be returned within 40 calendar days from the effective transaction date.
33 Not unique transaction reference (Credit payment instructions only)	The transaction has been returned because the beneficiary is unable to allocate the funds to the payer's account within the books of the beneficiary due to unrecognizable reference details	The transactions must be returned within 40 calendar days from the effective transaction date.

DISPUTE REASON CODES AND ACTIONS		
Code	**Description**	**Action to be Taken**
30 No authority to debit	The accountholder has disputed the User's authority to debit funds from their bank account.	The current payment instruction, as well as all future payment instructions, must be removed from processing. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
32 Debit in contravention of payer's authority	The accountholder has disputed the payment instruction based on the fact that the User is debiting their bank account in contravention of their authority.	The current payment instruction, as well as all future payment instructions, must be removed from processing. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
34 Authorization cancelled	The accountholder has disputed the payment instruction based on the fact that the authority given has been cancelled.	The current payment instruction, as well as all future payment instructions, must be removed from processing. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.
36 Previously stopped via stop payment advice	The accountholder is disputing the payment instruction based on the fact that they have previously issued a stop payment instruction on their account.	The current payment instruction, as well as all future payment instructions, must be removed from processing. The User must obtain a new mandate from the accountholder prior to submitting any new payment instructions in terms of Sections 2.1.1 and 3.

Disclaimer: These Terms of Use form part of the agreement which governs the use of the Electronic Funds Transfer (EFT) payment stream and further regulates the relationship between FirstRand Limited (hereafter known as FRB) the User

Appendix B

Authority and Mandate for payments Instruction: Electronic and Written Mandates

A. Authority

Given by *(name of Accountholder)*	_____
Address	_____
Bank	_____
Branch and Code	_____
Account Number	_____
Type of Account ***(delete that which is not applicable)***	Current (cheque) / Savings / Transmission
Amount	_____
Date	_____
To *(name of beneficiary)*	_____
Abbreviated Name as Registered with the Bank	_____
Beneficiary's Address	_____

This signed Authority and Mandate refers to our contract dated _____ ("the Agreement").

I/We hereby authorise you to issue and deliver payment instructions to your Banker for collection against my/our above-mentioned account at my/our above-mentioned Bank (or any other bank or branch to which I/we may transfer my/our account) on condition that the sum of such payment instructions will never exceed my/our obligations as agreed to in the Agreement and commencing on _____ and continuing until this Authority and Mandate is terminated by me/us by giving you notice in writing of not less than 20 ordinary working days, and sent by prepaid registered post or delivered to your address as indicated above.

The individual payment instructions so authorised to be issued must be issued and delivered as follows: monthly, bi-monthly, three monthly, six monthly, annually, weekly, bi-weekly **(delete that which is not applicable).**

In the event that the payment day falls on a Sunday, or recognised South African public holiday, the payment day will automatically be the preceding ordinary business day. Furthermore, if there are insufficient funds in my account to meet the obligation, you are entitled to track my account and re-present the instruction for payment as soon as sufficient funds are available in my account. [1]

Payment Instructions due in December may be debited against my account on _____.

I/We understand that the withdrawals hereby authorised will be processed through a computerised system provided by the South African Banks. I also understand that details of each withdrawal will be printed on my bank statement. Such must contain a number, which must be included in the said payment instruction and if provided to me should enable me to identify the Agreement. This number must be added to this form in Section E before the issuing of any payment instruction.

Specimen

B. Mandate

I/We acknowledge that all payment instructions issued by you shall be treated by my/our above-mentioned Bank as if the instructions have been issued by me/us personally.

C. Cancellation

I/We agree that although this Authority and Mandate may be cancelled by me/us, such cancellation will not cancel the Agreement. I/We shall not be entitled to any refund of amounts which you have withdrawn while this Authority was in force, if such amounts were legally owing to you.

D. Assignment

I/We acknowledge that this Authority may be ceded or assigned to a third party if the Agreement is also ceded or assigned to that third party, but in the absence of such assignment of the Agreement, this Authority and Mandate cannot be assigned to any third party.

Signed at _____ on this _____ day of _____.

_____

(Signature as used for operating on the account)

_____

(Assisted By)

E. Agreement Reference Number

This Agreement reference number is _____

Specimen

1. ***EFT Users may not use the tracking option and must exclude the option from their Authority and Mandate.***

Appendix C

Specimen and Minimum Requirements for a Voice Recorded Mandate

Consultant:
Good Morning, my name is _____ and I am calling from _____.
Before I continue I need to inform you that all calls are recorded for quality control purposes.
Mr/Mrs/Miss _____, the purpose of this call is _____
Can I take you through the process of how it works? I will need a few minutes of your time to explain.

User:
Yes/No

Consultant:
(Explain the product or service you are selling)
If the Users agree, confirm their personal details and ensure that they agree to the declaration below.

Contact Details	_____
Name and Surname	_____
Bank Code	_____
Account Number	_____
Amount	_____
ID Number	_____
Address	_____
Abbreviated Name as it will appear on your statement	_____
Pay Date	_____
Contract/Agreement Number	_____

Declaration
Do you authorise _____ to issue and deliver payment instructions to your Banker for collection against your Bank account on condition that the sum of such payment instruction will never exceed your obligations as agreed in your contract/agreement?

This method will commence effective **<date>** and will continue monthly, bi-monthly, three monthly, six monthly, annually, weekly, bi-weekly **<select the appropriate option>** thereafter until your obligation has ended or the Authority and Mandate is terminated by yourself by giving us notice of not less than one month/week.

In the event that the payment day falls on a Sunday, or recognised South African public holiday, the payment day will automatically be the preceding ordinary business day.

Payment instructions due in December may be debited against my account on _____.

If there are insufficient funds in the nominated account to meet the obligation, you are entitled to track my account and re-present the instruction for payment as soon as sufficient funds are available in my account. [1]

Specimen

This Authority and Mandate may be cancelled by me/us however; such cancellation will not cancel the Agreement. I/We shall not be entitled to any refund of amounts which you may have withdrawn while this Authority was in force, if such amounts were legally owing to you.

The Authority and Mandate may be ceded or assigned to a third party only if the Agreement is also ceded or assigned to the third party.

Mr/Mrs/Miss _____ we will confirm your Authority and Mandate in writing prior to processing the debit order against your account.

Mr/Mrs/Miss _____ do you understand and accept what I have read to you? ***(Yes/No)***
If you have any questions or complaints, please contact _____ on _____.

Thank You
Goodbye

No User may process payment instructions in terms of this mandate against the accountholder's account unless prior confirmation has been sent to the accountholder, as specified in the respective Terms of Use.

Specimen

[1] EFT Users may not use the tracking option and must exclude the option from their Authority and Mandate.

Appendix D

Specimen and Minimum Requirements for Confirmation to the Client

Name and Surname

Contract / Agreement Number

Commencement / Pay Date

Amount

Abbreviated Name *(must appear on your Client's statement)*

User Contact Details

Date of Confirmation

specimen

Appendix E

Specimen and Minimum Requirements for Notification of Cession or Assignment

Date

Name and Surname

Contract / Agreement Number

Current User Abbreviated Name

New Abbreviated Name *(which will appear on your statement)*

Commencement / Pay Date

Amount

User Contact Details

Email Address

specimen